SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

FILED
Superior Court of California
County of San Francisco
APPELLATE DIVISION
JAN 09 2024
CLERK OF THE COURT
BY: Deputy Clerk

Ismail Merino,

Petitioner,

v.

San Francisco Superior Court,

Respondent;

People of the State of California,

Real Party in Interest.

No. APP-24-8740

Superior Court No. 23006243

SUPPLEMENTAL EXHIBITS IN SUPPORT OF PETITION FOR A WRIT OF MANDATE OR PROHIBITION

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Reporter's Transcript of Proceedings (Dec. 26, 2023)

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE VEDICA PURI, JUDGE

DEPARTMENT 17

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PEOPLE OF CALIFORNIA, People, vs. ISMAEL MERINO OSORIO, Defendant.	)	CASE NO. 23006243

TRANSCRIPT OF PROCEEDINGS

HEARING

VOLUME 1 OF 1 - PAGES 1 - 9

DECEMBER 26, 2023

APPEARANCES:

FOR THE PEOPLE: ALBERT EUGENE, ESQ.

FOR THE DEFENDANT: CHARLIE DICKSON, ESQ.
San Francisco Public Defender
555 7th St, San Francisco, CA
94103

TRANSCRIBED BY: HANA COPPERMAN

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1 SAN FRANCISCO, CALIFORNIA - TUESDAY, 26 DECEMBER 2023
2 MORNING SESSION
3 (PROCEEDINGS IN OPEN COURT)
4 (Call to order at 11:47 a.m.)
5 THE COURT: Let me call line 29, Merino Osorio. Can
6 I get appearances, please?
7 MR. EUGENE: Just one moment.
8 THE COURT: Sure.
9 MR. EUGENE: Albert Eugene (phonetic) for the
10 People, Your Honor.
11 MR. DICKSON: Excellent, Your Honor. Charlie
12 Dickson, deputy public defender attorney. I'm here with my
13 client. He's standing beside me, present out of custody,
14 being assisted by the Spanish language interpreter.
15 MR. KNOCK: Stephanie Knock (phonetic), 30433012.
16 THE COURT: Thank you, folks. So we are on for
17 trial today. Is the Prosecution prepared to proceed?
18 MR. EUGENE: The People are not ready at this time,
19 Your Honor. There's still -- ADA Lee is on this case. She's
20 waiting for the expert opinion and has a scheduled meeting
21 with the analyst on the 27th, so tomorrow.
22 MR. DICKSON: And Your Honor, that's not good cause.
23 The fact that the Prosecution did not prepare their case is
24 very problematic. The fact that he didn't get in touch with
25 their expert, have the expert prepare an opinion, when this
26 case was filed back in April -- I'm sorry, in May -- is
27 inexcusable. Without the expert opinion, I don't know how
28 they were going to think that they would proceed with this

1 case. The fact that they chose to wait till the last minute,
2 it's their burden. That was their choice to make.
3 Here we have a client who's been on SCRAM. I don't
4 have any negative report. He's before Your Honor. He's been
5 coming to court. And the Prosecution has known about this
6 case. It should have been on their radar.
7 Given those representations, I don't think that's
8 good cause to continue this case. That's not a good cause, a
9 COVID related reason. It's not an illness, sickness on
10 counsel. It's just a failure to do the workup that you would
11 do in any single DV case that exists.
12 My client, I can say he's been waiting multiple
13 times in court with me. I've had good contact with him. I
14 think that given the Prosecution's not ready, this Court
15 should dismiss the matter under 1382. And if the Court does
16 not feel that's appropriate, I think the Court should dismiss
17 pursuant to 1385. But either way, there just is no good cause
18 here to continue the matter.
19 THE COURT: Okay. I need to know a couple of
20 things. First of all, and we can pass this to after the lunch
21 hour and we can excuse the Defendant's appearance for that
22 purpose. But I want to know if the expert is under subpoena.
23 That's my first question. You might have to check with Ms.
24 Lee on that.
25 My next question is, . Is this Mr. Merino's first
26 DUI? Because if he's on SCRAM, it tells me it might not be.
27 MR. DICKSON: Your Honor, I will defer to the
28 Prosecution.

THE COURT: Folks, I want the prior information. So I'm going to pass my decision on how to handle this until I get those two pieces of information. So --

MR. DICKSON: All right.

THE COURT: Again, if we need to let Mr. Merino go, I don't want to keep him here throughout the lunch hour. That's fine. But I'll pass this to 1:30 to get that information.

MR. DICKSON: All right, Your Honor.

THE COURT: Thank you.

MR. DICKSON: Your Honor, actually, I did want to. Maybe I'll have him back, because I did --

THE COURT: Sure.

MR. DICKSON: -- also want to address the SCRAM monitor at some point today. Sure.

MR. DICKSON: Okay. Thank you.

(Recess at 11:51 a.m., recommencing at 2:49 p.m.)

1 SAN FRANCISCO, CALIFORNIA - TUESDAY, 26 DECEMBER 2023
2 AFTERNOON SESSION
3 (PROCEEDINGS IN OPEN COURT)
4 (Call to order at 2:49 p.m.)
5 THE COURT: Let's call our last matter, 29, Merino
6 Osorio. Let me get appearances, please.
7 MR. EUGENE: Albert Eugene for the People, Your
8 Honor.
9 MR. DICKSON: Charlie Dickson, Deputy Public
10 Defender, attorney. I'm here with my client, who's standing
11 beside me present, out of custody, being assisted by the
12 Spanish language interpreter.
13 MR. KNOCK: Stephanie Knock 30433.
14 THE COURT: Okay. While we were waiting for you,
15 Mr. Dickson, we got some information from the Prosecution.
16 Number one, the expert is not under subpoena. And as to
17 priors, the answer was yes, there were priors. So I asked how
18 many and what information we could get.
19 So Mr. Eugene, over to you.
20 MR. EUGENE: Two prior DUI cases or convictions from
21 the Defendant. And then also, in addition to the two priors,
22 the Defendant was recently arrested for DUI in Redwood City on
23 8/2/23. However, the Defendant in that case pled to a 23152
24 (b) and ended up doing 53 hours of the sheriff work --
25 THE COURT: Okay. So Mr. Dickson, I hear your
26 pitch. DA's not ready. DA's not ready. However, this
27 defendant poses a particularly serious public safety risk. I
28 am extremely concerned about his conduct. So not only would I

be denying preemptively any request to remove SCRAM, I'm going to give this a few more days. Granting a 1050. You can writ me if you need to. And if it's not ready, then at that time I'm going to go ahead and dismiss the case.

So at this time, the Court's finding good cause granting of Prosecution 1050 to continue the case until January 5th. What is the Defendant's status? DOP SCRAM violations?

MR. DICKSON: Yes.

THE COURT: All right. He can remain DOP. No SCRAM violations.

And on January 5th, if there is any more nonsense, if this is not ready in any which way, the case will be dismissed, and then it will be on the DA to have created a major public safety issue.

Go ahead, Mr. Dickson.

MR. DICKSON: I'm set, Your Honor.

(Indiscernible -- simultaneous speech)

THE COURT: Yeah. So the new last day will be January 16. Okay. Anything else you want to also put on the record?

MR. DICKSON: Yes, Your Honor. Just I do believe this is DA negligence under the Valenzuela case, 75 Cal.App.5th 1108, which is not a grounds for continuance. And I would object to this and submit, Your Honor.

THE COURT: Understood. All right, folks. Back January 5th.

MR. EUGENE: Thank you, Your Honor.

THE COURT: 1382 is denied.

MR. DICKSON: And Your Honor, I'm sorry to keep you waiting. I popped in here first, and then they started yelling at me to go over to DV. So I apologize.

THE COURT: The life of a lawyer.

MR. DICKSON: I know. I just --

THE COURT: You will be yelled at no matter what you do.

MR. DICKSON: I just wanted to apologize to the Court.

THE COURT: I appreciate it.

MR. DICKSON: Yeah.

(Proceedings adjourned at 2:51 p.m.)

CERTIFICATION

I, HANA COPPERMAN, a court-approved transcriber, do hereby certify that the foregoing transcript, pages 1 through 9, is a correct transcript from the official electronic sound recording of the proceedings in the above entitled matter, to the best of my professional skills and abilities.

Hana Copperman

Hana Copperman CET-487
Digital Court Transcriber

January 5, 2024

EXHIBIT H

Reporter's Transcript of Proceedings (Jan. 5, 2024)

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE VEDICA PURI, JUDGE

DEPARTMENT 17

-o0o-

PEOPLE OF CALIFORNIA, People, vs. ISMAEL MERINO-OSORIO, Defendant.	)	CASE NO. 23006243

TRANSCRIPT OF PROCEEDINGS

HEARING

VOLUME 1 OF 1 - PAGES 1 - 5

JANUARY 5, 2024

APPEARANCES:

FOR THE PEOPLE: AMIN ZARIF, ESQ.

FOR THE DEFENDANT: CHARLIE DICKSON, ESQ.
San Francisco Public Defender
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94103

TRANSCRIBED BY: HANA COPPERMAN

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SAN FRANCISCO, CALIFORNIA - FRIDAY 5 JANUARY, 2024

MORNING SESSION

(PROCEEDINGS IN OPEN COURT)

(Call to order at 9:42 a.m.)

THE COURT: Let me call line 40, the Merino matter on for jury trial. Can I get appearances, please?

MR. ZARIF: Amin Zarif (phonetic), specially appearing for ADA Amanda Lee (phonetic) for the People.

MR. DICKSON: Thank Your Honor. Charlie Dickson, deputy public defender attorney here with Mr. Merino. He's standing beside me, present out of custody, being assisted by the Spanish language interpreter.

THE INTERPRETER: Good morning, Your Honor. Rosa Dart, certified court interpreter, ID number 300256005.

THE CLERK: Can you spell your last name for me?

THE INTERPRETER: D-A-R-T.

THE COURT: Okay. It's on for trial. I continued it to today. Mr. Zarif, is the DA ready?

MR. ZARIF: If I could just have one second, Your Honor? Yes. The People are ready, Your Honor.

THE COURT: Mr. Dickson?

MR. DICKSON: Ready, Your Honor.

THE COURT: All right. I'm sending this trial out to Judge Sandoval's department for Monday, January 8, at 9 a.m. Mr. Merino's appearance can be excused on that date. Mr. Sandoval can figure it out after that.

By the end of the day, Mr. Zarif, make sure that the witness list is turned over, all your motions are ready to go,

1 and all those kinds of things.

2 MR. ZARIF: Thank you, Your Honor. I'd like to

3 renew my previous 1382 motion.

4 THE COURT: Denied.

5 MR. ZARIF: Okay. Thank you.

6 UNIDENTIFIED SPEAKER: What's the progress for this

7 (indiscernible)?

8 THE COURT: What do you guys think it could be?

9 MR. ZARIF: Five to seven days.

10 MR. DICKSON: I think --

11 THE COURT: I think five to seven.

12 MR. DICKSON: Yeah.

13 THE COURT: How about that?

14 MR. DICKSON: Sounds reasonable.

15 THE COURT: All right.

16 MR. DICKSON: All right.

17 (Proceedings adjourned at 9:44 a.m.)

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CERTIFICATION

I, HANA COPPERMAN, a court-approved transcriber, do hereby certify that the foregoing transcript, pages 1 through 4, is a correct transcript from the official electronic sound recording of the proceedings in the above entitled matter, to the best of my professional skills and abilities.

Hana Copperman

Hana Copperman CET-487
Digital Court Transcriber

January 9, 2024

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

Ismail Merino, *Petitioner*, v. **San Francisco Superior Court,** *Respondent*; **People of the State of California,** *Real Party in Interest.*	No. APP-24-8740 Superior Court No. 23006243

PROOF OF SERVICE OF SUPPLEMENTAL EXHIBITS IN SUPPORT OF PETITION FOR A WRIT OF MANDATE OR PROHIBITION

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I, Oliver Kroll, declare:

I am over eighteen years of age and not a party to this action. My business address is 555 Seventh St, San Francisco, CA 94103.

On January 9, 2024, I served the **Supplemental Exhibits in Support of Petition for a Writ of Mandate or Prohibition** electronically on:

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I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on January 9, 2024, at San Francisco, California.

Oliver Kroll